

STATE OF IOWA
BEFORE THE BOARD OF PSYCHOLOGY

IN THE MATTER OF THE
STATEMENT OF CHARGES
AGAINST

Steven Warner, Ph.D.,

RESPONDENT.

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:
: CASE NO. 03-007
:
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:
: **SETTLEMENT AGREEMENT**
: **AND FINAL ORDER**
:

COMES NOW the Board of Psychology of the State of Iowa ("Board") and Steven Warner, Ph.D., ("Respondent"), and pursuant to Iowa Code sections 17A.10 and 272C.3(4), enter into the following Settlement Agreement and Final Order of the contested case currently on file against the Respondent:

1. The Respondent was originally licensed to practice as a psychologist in the State of Iowa on December 19, 1981, and holds license number 301-00385.
2. A Notice of Hearing and Statement of Matters Asserted was filed against the Respondent on March 13, 2007.
3. The Board has jurisdiction over the parties and the subject matter of the Notice of Hearing.
4. Execution of this Settlement Agreement and Final Order constitutes the resolution of this contested case. Respondent has a right to a hearing on the charges, but waives his right to hearing and all attendant rights, including the right to appeal, by freely and voluntarily agreeing to this Settlement Agreement and Final Order.
5. This Settlement Agreement is entered into by the parties to resolve disputed claims and does not constitute an admission on the part of Respondent. He is entering the Agreement

because he has had a career ending stroke on September 24, 2007 and he is currently on long-term disability due to his inability to work due to this permanent medical condition.

6. Respondent is freely and voluntarily entering into this Settlement Agreement and Final Order, and he agrees that the State's counsel may present this agreement to the Board.

7. This Agreement is subject to approval of the Board. If the Board approves this agreement, it becomes the final disposition of this matter. If the Board fails to approve this agreement, it shall be of no force or effect to either party.

8. This agreement shall be part of the permanent record of Respondent.

9. This Settlement Agreement and Final Order becomes a public record available for inspection and copying upon execution of this agreement in accordance with the requirements of Iowa Code Chapter 22 and 272C.

10. The Board's approval of this agreement shall constitute a FINAL ORDER of the Board.

IT IS THEREFORE ORDERED:

11. The Respondent agrees to voluntarily surrender his license to practice psychology in the State of Iowa pursuant to the meaning of 645 Iowa Administrative Code section 12.1(5).

12. The Respondent shall surrender his psychology license to the Board within 10 days of the execution date of this Agreement. The execution date is that date which accompanies the Board Chairperson's signature.

13. By voluntarily surrendering his license, the Respondent agrees not to use any words or titles which imply or represent that he is a licensed psychologist or to otherwise hold himself out to the public as a licensed psychologist or to engage in the practice of psychology for which a license is required in the State of Iowa.

14. The Respondent agrees that should he ever seek reinstatement of his license to practice as a psychologist in the State of Iowa, such application shall be subject to the provisions of 645 Iowa Administrative Code section 11.31. In any application for reinstatement, the Respondent shall be required to submit evidence that demonstrates to the Board's satisfaction that the basis for the surrender of Respondent's license no longer exists and that it will be in the public interest of the license to be reinstated. The Respondent shall bear the burden of proof establishing these facts.

This settlement agreement and final order is approved by the board on November 7, 2008.